

24NNCV00504 24NNCV00504

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24NNCV00504 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 3

Date: September 11, 2026

Case No: 24NNCV00504 Trial Date: July 6, 2027

Case Name: Gallogly v. Huntington Memorial Hospital, et al.

MOTION TO COMPEL FURTHER RESPONSES TO RFPS

[CCP § 2031.310]

Moving Party: Plaintiff, Mary Garripoli Gallogly

Responding Party: Defendant, Huntington Health

RELIEF REQUESTED:

Compel further responses to Requests for Production, No. 1.

CAUSES OF ACTION: from Complaint

1) Medical Negligence

CHRONOLOGY:

Discovery Served: April 21, 2026

Responses Served: June 22, 2026 / August 28, 2026

Motion Served: August 7, 2026

SUMMARY OF FACTS:

Mary Garripoli Gallogly ("Plaintiff") alleges that on September 8, 2022, she was admitted to defendant Huntington Health ("Huntington") and diagnosed with distal right ureterolithiasis, a condition wherein a stone or stones are present in the ureter, the "tube" connecting the kidney to the bladder. Defendant Shahin Chandrasoma, ("Chandrasoma") performed a right ureteroscopy, right retrograde pyelogram, right renal washings, laser lithotripsy, basket extraction of stone fragments, and placement of a ureteral stent. During the procedures, Chandrasoma observed a liquid within Plaintiff's ureteral orifice. A sample of this liquid was sent for laboratory analysis which revealed the presence of E. coli in Plaintiff's body. Plaintiff alleges that at no point did Chandrasoma disclose to Plaintiff that she had an E. coli infection. Following the procedures, Plaintiff began to develop a number of health issues including severe back pain and symptoms of congestive heart failure. Plaintiff was treated for fluid build-up in her lungs and was hospitalized multiple times. In March of 2023, Plaintiff consulted with an infectious disease doctor which revealed that Plaintiff still had an E. coli infection which was causing her discitis and likely her other health issues. He prescribed medications, and the infection was cured.

ANALYSIS:

A motion to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories, demands to produce, or requests for admission. (CCP, § 2031.310, subd. (a); Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.)

To request further production, a movant must establish: (1) good cause for the production (CCP, § 2031.310, subd. (b)(1); Sinaiko, supra, at p. 403); and (2) that a further response is needed because (a) the responding party's statement of compliance with the demand to produce is incomplete (CCP, § 2031.310, subd. (a)(1)), (b) the responding party's representation that it is unable to comply is inadequate, incomplete, or evasive (CCP, § 2031.310, subd. (a)(2)), (c) the responding party's objection in the response is without merit or is too general (CCP, § 2031.310, subd. (a)(3); Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127), or (d) if the responding party objected to the production of ESI on the ground that it is not reasonably accessible the movant can show that the (i) ESI is reasonably accessible or (ii) there is good cause for production of the ESI regardless of its accessibility. (CCP, § 2031.310, subd. (e).)

Plaintiff's RFP No. 1 seeks "a complete, unredacted, and unaltered AUDIT TRAIL /AUDIT LOG and all associated METADATA for the Electronic Medical Record (EMR) of Marry Garripoli-Gallogly, specifically covering the period from September 9, 2022 to December 10, 2022."

In the opposition, Huntington notes that on August 28, 2026, it served a supplemental response to the request responding that "After diligent search and reasonable inquiry Responding Party is no longer in possession, custody, or control of documents responsive to this Request. Responding Party lost access with no way to retrieve these documents when it made a switch to a new software system in 2022 prior to this case being filed in 2024. As a result of switching to the new software, access to Plaintiffs audit trail for the period from September 9, 2022 to December 10, 2022 was lost and is no longer retrievable."

This response is a Code-compliant statement of inability to comply. (CCP, § 2031.230.) Accordingly, the motion to compel further is DENIED. This posture leaves only the issue of sanctions.

Request for Sanctions

Except in certain circumstances involving electronically stored information, “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP, § 2031.310, subd. (h).)

Under CRC Rule 3.1348(a): “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.”

The burden is on the party subject to sanctions to show substantial justification or injustice. *Mattco Forge, Inc. v. Arthur Young & Co.* (1990, 2nd Dist.) 223 Cal.App.3d 1429, 1436.

Plaintiff requests sanctions in the amount of \$2,310.00. The amount requested is high given that the motion pertains to a single discovery request and was ultimately denied. However, the Court finds that sanctions are warranted because Huntington did not provide a Code-compliant response until after this motion was filed. The sanctions are adjusted accordingly. Sanctions are awarded as follows: Total attorneys hours of 3.0 hours at \$450.00 per hour for total attorney fees of \$1,350.00

RECOMMENDED RULING:

Plaintiff Mary Garripoli Gallogly's Motion to Compel Further Responses is DENIED.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$1,350.00 (3.0 hours @ \$450/hour) [5.0 hours requested] plus \$60 in filing fees for a total award of \$1,410.00 [Amount Requested \$2,310.00], which sum is to be awarded in favor of Plaintiff Mary Garripoli Gallogly, and against Defendant Huntington Health and Defendant's attorney of record, jointly and severally, payable within 30 days. (CCP, § 2031.310, subd. (h); CRC Rule 3.1348(a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.